

23STCV18020 23STCV18020

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 23STCV18020 Hearing Date: August 3, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

IMRAN

KHAN,

Plaintiff,

vs.

MICHAEL

R. "HARRY-O" HARRIS, et al.

Defendants.

Case No.:

23STCV18020

Hearing

Date:

August 3, 2026

ORDER

GRANTING MOTION FOR LEAVE TO FILE CROSS COMPLAINT

I. BACKGROUND

Defendants

secured funding from Plaintiff Imran Khan ("Khan") to produce an episodic television program focused on changes in incarcerated individuals, including Defendant Michael Harris ("Harris"), to sell to a major network. Defendant Omar Shakur ("Shakur") allegedly assured Khan he would either receive a return via sale of the show, or from Harris. Khan has yet to receive any financial return. Khan sued Defendants for four causes of action, including breach of contract.

On

August 25, 2025, Harris filed the instant motion for leave to file a cross-complaint. No party filed an opposition.

II. LEGAL STANDARD

Code of Civil Procedure section

426.50[1]

provides as follows:

"A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action."

Section 428.50 provides "(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to

the complaint or cross-complaint. (b) Any other cross-complaint may be filed at any time before the court has set a date for trial. (c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.”

“The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98-99.)

III. DISCUSSION

Harris requests leave to file an attached compulsory cross-complaint against Defendants Paul Nutall (“Paul”) and Tiffany Nutall (“Tiffany”) for implied contractual indemnification, equitable indemnification, and declaratory relief. In general, the Court must grant a motion to file a cross-complaint absent a showing of bad faith on the moving party’s behalf.

Harris requests leave to file the cross-complaint following information uncovered during discovery. During the November 2024 deposition of Shakur, Shakur produced documents purported to be partnership agreements with Harris and the Nutalls. Counsel reviewed these documents and found them to provide a basis for a cross-complaint. In June 2025, Harris issued subpoenas for the deposition and production of documents to the Nutalls to conduct further discovery into this issue. The Nutalls objected and the depositions did not move forward. At that point, Harris filed this motion for leave to file a cross-complaint against Paul and Tiffany.

Harris filed this motion after attempting to conduct diligent discovery into the Nutalls involvement, only filing upon reviewing documents and being unable to otherwise pursue investigation. There is no currently scheduled trial date, leaving Tiffany and Paul sufficient time to respond and conduct their own discovery. Additionally, the Court notes Tiffany and Paul have yet to appear in this action in any capacity—therefore, they have

likely not advanced a trial strategy in any capacity that would be prejudiced by the filing of a cross-complaint.

The Court grants the motion.

IV. CONCLUSION

Defendant Michael Harris's motion for leave to file the cross-complaint is GRANTED.

Harris is ordered to give notice.

DATED:

August 3, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without

leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.